IN THE COURT OF THE HON'BLE DISTRICT MUNSIF OF SULUR

O.S.NO. 855 OF 2017

1. Sathivel
2. Sathyamoorthy - Plaintiffs

-Vs-

1. C.Ponnusamy
2. S.Rajamani
3. R.Viswaputhiramani
4. S.Subbulakshmi
5. S.Sundarajan(died)
6. D.Balasubramaniam @ Balasundaram
7. Venkatachalapathy @ Venkatesan (died)
8. The Sub Registrar, Annur
9. Mrs.Sumathira Devi
10. Adithya
11. Sivagami
12. Jayabarathi
13. Manoranjini
14. S.Sudhakar
15. S.Shanthi
16. Raja - Defendants

WRITTEN STATEMENT FILED BY DEFENDANT NO.14 ADOPTED BY DEFENDANT NO.15

1. This suit is false, frivolous and unsustainable in law and on facts of the case.

2. The plaintiff is put to strict proof of all the allegations except those that are specifically admitted herein.

3. These defendants submit that the plaintiff herein filed the above suit for the relief of declaration to declare the decree and judgment in O.S.No.2216/2012 on the file of the Hon'ble District Munsif Court, Coimbatore obtained through Lok Adalat held on 20.04.2013 and got the Decree registered as Doc.No.5648/2023 at SRO, Annur as null and void. So also, the plaintiff sought for the relief to declare the alleged Will dated 17.12.1974 (discrepancies in pleadings regarding date of alleged Will) alleged to have been executed by Late. Ganapathy Gounder as null and void on the ground of it's forged nature. These defendants submit that already they have filed a suit in O.S.No.885/2017 on the file of this Hon'ble Court for same relief and the defendant no.16 also filed another suit in O.S.No.853/2017 for similar relief and

as such these defendants have no objection for passing a decree by declaring the Lok Adalat Award passed in O.S.No.2216/2012 on the file of District Munsif Court and it's registration as Doc.No.5648/2013 at SRO, Annur as null and void and to declare the alleged Will dated 17.12.1974 said to have been executed by Late. Ganapathy Gounder as null and void. The defendants 14 to 16 are concerned with an extent of 6.22 acres in S.F.No.266/1 in Mopiripalayam Village which is also subject matter of suit property herein in the above case.

4. The defendants 14 and 15 are absolute owner of suit property namely an extent of 3.11 acres on North out of 6.22 acres in S.F. No. 266/1 at Mopiripalayam Village, Palladam, Annur Taluk, Coimbatore District as per Sale Deed dated 12.06.2008, registered as Doc.No. 3888/2008 at SRO, Annur executed by vendors namely S.Thangavelu and five others therein for valid consideration and since then, these defendants have been in possession and enjoyment of the suit property.

5. These defendants submit that the suit property was purchased as Agricultural land being Northern half share measuring 3.11 acres as referred above and the remaining half share on South measuring 3.11 acres was purchased by Raja namely the defendant no.16 herein. The defendant nos. 14 to 16 have produced Revenue records such as Chitta to prove that the entire 6.22 acres belongs to them, in their suits respectively which would establish prima facie case that these defendants are in possession of suit property measuring 6.22 acres in S.F.No.266/1.

6. At this juncture, during 4th week of October 2013, the land brokers of Mopripalayam village spread rumors that the said property of 6.22 acres are coming for sale and thereby circulated Xerox copies to intending buyers. However, the said fact came to the knowledge of defendants 14 to 16 and on seeing those papers, it seems that the defendants 1 to 7 herein among themselves filed a suit i.e. the defendants 1 to 5 herein filed a suit against the defendants 6 and 7 herein in O.S. No. 2216/2012 on the file of the District Munsif of Coimbatore for the relief to declare an alleged unregistered Will dated 17.12.1974 said to have been executed by one Ganapathy Gounder (Grandfather) as valid and thereby sought for injunction restraining the defendants therein i.e. 6th and 7th defendant herein not to interfere with possession of properties, which includes the suit property herein as part of Item No.1.

7. These defendants also submit that the defendants 1 to 5 herein after filing the suit on 08.10.2012, by colluding with defendants 6 and 7 referred the case to Lok Athalath held on 20.04.2013 and thereby compromised the issue in the above suit and based on which a compromise decree was also passed in O.S. No. 2216/2012 before Lok Athalath. The defendant nos. 1 to 7 herein also got it registered in the Sub Registrar Office, Annur and also making attempt the name mutation in the Revenue Records based on the said orders obtained fraudulently by them behind the back of these defendants and as well as by abusing process of law.

8. These defendants submit that on perusal of plaint copy appended along with Lok Athalath decree, disclose that the suit properties therein including the suit property herein in S.F. No. 266 originally belonged to Ganapathy Gounder who said to have executed an alleged unregistered Will dated 19.12.1974 and in pursuance of which, the defendants 1 to 5 herein being his grandchildren through two daughters of Ganapathy Gounder got title, which the defendants 5 and 6 attempted to interfere with their possession, etc., and thereby they alleged to have filed the suit and in due course they got it compromised before Lok Athalath. So also, by getting a collusive decree by fraudulent means, they got the same registered in Annur Sub Registrar's Office as Doc.No. 5648/2013.

9. These defendants submit that based on the alleged document obtained by fraudulent means, the defendants 1 to 7 made attempt to disturb these defendants peaceful possession and enjoyment of the suit property, without any legal right. Besides, as per said Lok Athalath Settlement; the 6th defendant seems to have retained the suit property herein including entire 6.22 acres and thereafter, he also entered into an alleged Sale Agreement dated 24.07.2013 with one E.Vijayakumar towards alleged sale of 6.22 acres. These defendants submit that the suit property namely 6.22 acres in S.F. No. 266 at Mopiripalayam Village along with larger extent of 11.96 acres were originally purchased by one Ganapathy Gounder under registered Sale Deed dated 15.11.1926. Subsequently, the said Ganapathy Gounder along with his brother Chinnathambi Gounder both partitioned the aforesaid property along with other joint family properties under Partition Deed dated 11.12.1926, registered as Doc.No.453/1927 and as per which, an extent of 6.22 acres on West in

S.F.No. 266 was allotted to the share of Ganapathy Gounder and the remaining half share was allotted to his brother Chinnathambi Gounder.

10. The said Ganapathy Gounder had four sons by name Duraisamy, Rangasamy, Muthusamy and Rathinasamy and as well as two daughters namely Sivagamy and Thulasiammal. The defendants 1, 2, 3 and 5 herein are children of Sivagamy and 4th defendant is child of Thulasiammal. The defendant No.6 is son of aforesaid Duraisamy and defendant No. 7 is son of Rangasamy. It seems that the said Ganapathy Gounder during his lifetime executed a Will dated 20.05.1963, registered as Doc.No. 16/1963 by bequeathing his properties to his four sons as referred above and more particularly the property in S.F. No. namely 5.98 acres (as per Chitta the extent is 6.22 acres) was bequeathed to the son Rangasamy Gounder under schedule 'B' therein and others were bequeathed with other properties as detailed therein with absolute right after his lifetime. The said WILL was duly executed, attested and registered in sound disposal state of mind and body. The recitals of said Will also disclose that the said Ganapathy Gounder executed the said Will out of his free Will and volition pertaining to his self-acquired and ancestral properties.

11. At this juncture, the aforesaid Rangasamy s/o Ganapathy Gounder seems to have died leaving behind him, his son namely Venkitachalapathy (defendant No.7), daughters P.Vijayakumari and S.Devi to succeed the estate of Rangasamy Gounder as per the Will dated 20.05.1963, registered as Doc.No. 16/1963. Accordingly, all of them i.e. Venkatachalapathy for himself and power agent of his two sisters sold the entire extent of 5.98 acres in S.F.No. 266 to one S.Vijayakumar s/o Subramaniam under Sale Deed dated 20.11.2006, registered as Doc.No.3291/2007 at SRO, Annur. In the meanwhile, one among the sons of Ganapathy Gounder namely Muthusamy executed a Deed of Settlement dated 06.04.1985, registered as Doc.No. 601/1985 at SRO, Annur in favour of his three daughters viz. Megala, Mallika and Chitra by settling the entire extent of 6.22 acres to them with absolute right by stating that the said property was originally belonged to his father Ganapathy Gounder under Partition Deed dated 11.12.1926, and thereafter as per oral partition between four sons of Ganapathy Gounder, the said 6.22 acres was allotted to the said Muthusamy Gounder and also a separate patta was granted to him and thereby he settled those

properties to his three daughters namely Megala, Mallika and Chitra as referred above.

12. Thereafter, the said Megala, Mallika and Chitra all sold the said extent of 6.22 acres in S.F. No. 266/1 along with other properties to one Thangavelu and 5 others on 23.01.2007 for valid consideration under Sale Deed dated 23.01.2007, registered as Doc.No. 383/2007 at SRO, Annur. Thus, the said S.Thangavelu and 5 others as in Sale Deed dated 23.01.2007 derived absolute title over the said property. From the above, it seems that the entire 6.22 acres was already sold by legal heirs of late Ranagasamy Gounder to Vijayakumar s/o Subramaniam and subsequently three daughters of Muthusamy Gounder being settlee sold very same property to S.Thangavelu and 5 others.

13. At this juncture, having known such discrepancy, the said Vijayakumar who said to have purchased the suit property including 6.22 acres from Legal heirs of late Rangasamy Gounder executed a Deed of Release dated 12.06.2008, registered as Doc.No. 3714/2008 at SRO,Annur in faovur of the said S.Thangavelu and 5 others by receiving a consideration as detailed therein. Thus, from all the above the said S.Thangavelu and 5 others namely S.Ramasamy, S.Chinnasamy and Ganesamoorthy, A.Chandrasekaran and C.Chandrasekar all derived absolute title over the suit property from whom, the defendant no.16 purchased an half share measuring 3.11 acres on South under Sale Deed dated 12.06.2008, registered as Doc.No.3722/2008 at SRO, Annur for valid consideration and the remaining half share on North was purchased by defendants 14 and 15 under Sale Deed dated 12.06.2008 registered as Doc.No.3888/2008.

14. In short, the defendants 14 to 16 have purchased 6.22 acres through two sons of Ganapathy Gounder and in which, the two daughters of Ganapathy Gounder had no right at all. These defendants most humbly submit that the two daughters of Ganapathy Gounder namely Sivagami and Thulasiammal had no right at all over the suit property in any means for the reasons that by oral partition, took place between Ganapathy Gounder and his four sons even as early before 1985 (as per separate patta issued), the said property was allotted to Muthusamy Gounder who subsequently settled the suit property to his three daughters. So also, as per Will 20.05.1963, the daughters of Ganapathy Gounder were not allotted any property and

thus at no point of time, the two daughters of Ganapathy Gounder exercised any right over the suit property. Whileso, the defendants 1 to 5 herein being children of the said Sivagami and Thulasiammal had no right at all over the suit property. However, at this instigation of the defendants 6 and 7 namely the son of Duraisamy i.e. 7th defendant herein and son of Rangasamy namely Venkatachalapathy @ Venkatesan Defendant No. 6 (who is vendor in Sale Deed dated 20.11.2006), the defendants 1 to 5 filed the suit in O.S.No.2216/2012 and by fraudulent means, the suit property namely 6.22 acres was retained by 6th defendant who is son of Duraisamy i.e. four sons of late Ganapathy Gounder by evil design.

15. The defendants 1 to 7 herein by colluding with each other filed the alleged suit in O.S. No**.** 2216/2012 before the District Munsif Court of Coimbatore by alleging that the properties therein including S.F.No. 266 belonged to defendants as per alleged Will dated 17.12.1974 said to have been executed by Ganapathy Gounder, which is false and fraudulent. The said Ganapathy Gounder at no point of time executed the alleged unregistered Will dated 19.12.1974, which is a forged instrument created by defendants 1 to 7 herein with intend to grab the suit property with dishonest intention to deprive the right of the defendants 14 to 16 have title over suit property. If really, the defendants 1 to 5 herein are entitled to succeed suit property as per the alleged unregistered WILL dated 19.12.1974 is true, the attesting witnesses should have been examined before Lok Athalath or before court, (without prejudice) and without which, the decree obtained in O.S. No. 2216/2012 is nothing, but fraudulent. These defendants most humbly submit that on date of filing suit, the ownership of 6.22 acres is with defendants 14 to 16 since they have already purchased the suit property as per Sale Deed dated 12.06.2008, registered as Doc.No.3722/2008 and Sale Deed dated 12.06.2008, registered as Doc.No.3888/2008 at SRO, Annur. If really, the defendants 1 to 5 have a real and true case, they should have obtained encumbrance certificate before filing alleged suit in O.S No. 2216/2012 and they should have also claimed the whole relief if any, including the prayer to set aside the Sale Deed in favour of the defendants 14 to 16. The Sale Deed in favour of the defendants 14 to 16 dated 12.06.2008 is a public document and it is deemed to have made known to all, since, it has come in entry of encumbrance certificate. Whereas, having known all the facts of the ownership over suit property to these defendants, the defendants 1 to 7 herein by colluding with each other to dispossess these

defendants from suit property obtained the alleged fraudulent decree in O.S.No.2216/2012 by fraudulent means, which is not binding on the defendants 14 to 16 herein.

16. That apart, the mother of 6th defendant namely Maragatham already filed a suit in O.S. No. 4/2011 on the file of District Munsif of Avanashi, which was now transferred to this Honourable Court and renumbered as O.S. No. 2342/2013 for partition including suit property in which the defendants 6 and 7 are parties, which was suppressed. Thus, from all the above, it is well evident that defendants 1 to 7 being very same family members in connivance with each other and in order to grab the suit property, obtained a decree in O.S. No. 2216/2012 by referring the same before Lok Athalath held on 20.04.2013 by fraudulent means and got it registered as Doc.No. 5648/2013 before SRO, Annur. These defendants most humbly submit that the plaint pleadings in O.S.No. 2216/2012 are fraudulent and based on forged instruments. Even, the defendants 6 and 7 given wrong names in O.S. No. 2216/2012 i.e. the 6th defendant name is Balasubramaniam, but he changed as Balasundaram. So also, 7th defendant name is Venkatachalapathy, but given his name as Venkatesh. Since the defendants 1 to 7 in connivance with each other obtained the said decree pertaining to suit property measuring 6.22 acres, which belonged to the defendants 14 to 16, they become constrained to file the suits in O.S.No.853/2017 and O.S.No.885/2017 on the file of this Hon'ble Court for the relief to declare the decree passed in O.S. No. 2216/2012 before the Lok Athalath held on 20.04.2013 and got it registered as Doc. No. 5648/2013 at SRO, Annur as null and void on the ground of fraud and collusion between defendants 1 to 7 and also permanent injunction restraining the defendants from in anyway disturbing these defendants peaceful possession and enjoyment of suit property. These defendants also submit that the defendant nos.1 to 7 herein already came to suit property on 25.10.2013 with rowdy elements to dispossess them, which was thwarted by intervention of neighbours.

17. These defendants further submit that in their suits in O.S.Nos.885/2017 and 853/2017 they have sought for the relief to declare an alleged Sale Agreement dated 24.07.2013, registered as Doc.No.6142/2013 executed by 6th defendant in favour of the said E.Vijayakumar pertaining to the aforesaid extent of 6.22 acres in

S.F.No.266/1 as null and void since the said instrument was a fraudulent one. These defendants submit that the averments pleaded by plaintiff with respect of alleged Will dated 17.12.1974 as forged instrument and the Decree obtained in O.S.No.2216/2012 is a fraudulent decree are accepted as correct. Hence, these defendants have no objection to decree the suit with respect of aforesaid prayers.

Therefore, it is prayed that this Hon'ble Court may be pleased to decree the suit as prayed for in the plaint and thus render justice.

ADVOCATE FOR DEFENDANT NO.14 **DEFENDANT NO.14**

VERIFICATION

I, the Defendant no 14 above named do hereby declare that the facts stated above are true and correct to the best of our knowledge and we signed the same at Coimbatore on

DEFENDANT NO.14

This Written Statement filed by 14th defendant is adopted by defendant no.15

ADVOCATE FOR DEFENDANT NO.15

IN THE COURT OF THE HON'BLE
DISTRICT MUNSIF OF SULUR

O.S.NO. 855 OF 2017

1. Sathivel
2. Sathyamoorthy

- Plaintiffs

-Vs-

1. Ponnusamy
2. S.Rajamani
3. R.Viswaputhiramani
4. S.Subbulakshmi
5. S.Sundarajan(died)
6. D.Balasubramaniam @ Balasundaram
7. Venkatachalapathy @ Venkatesan (died)
8. The Sub Registrar, Annur
9. Mrs.Sumathira Devi
10. Adithya
11. Sivagami
12. Jayabarathi
13. Manoranjini
14. S.Sudhakar
15. S.Shanthi
16. Raja

- Defendants

WRITTEN STATEMENT FILED BY

DEFENDANT NO.14 ADOPTED BY 15

Pre.on:

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